

23CHCV01493 23CHCV01493

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Case Number: 23CHCV01493 Hearing Date: August 31, 2026 Dept: F49

Dept. F49

Date: 8/31/26

Case Name: Gerardo Zavala vs. American Honda Motor Co.,
Inc.; and Does 1-10

Case No. 23CHCV01493

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 31, 2026

MOTION FOR
ATTORNEY FEES, COSTS, AND EXPENSES

Los Angeles Superior
Court Case No. 23CHCV01493

Motion filed: 3/20/26

MOVING PARTY: Plaintiff Gerardo Zavala

RESPONDING PARTY: Defendant American Honda Motor

Co., Inc.

NOTICE: OK

RELIEF REQUESTED: An order from this Court awarding Plaintiff Gerardo Zavala attorney fees, costs, and expenses in the total amount of \$33,527.51.

TENTATIVE RULING: The Motion is GRANTED IN PART.

BACKGROUND

Plaintiff

Gerardo Zavala ("Plaintiff") filed this Song-Beverly Consumer Warranty Act lawsuit over alleged defects in a new 2022 Honda Accord (the "Subject Vehicle") he purchased on March 8, 2022. The Subject Vehicle was manufactured by Defendant American Honda Motor Co., Inc. ("Defendant").

On

May 22, 2023, Plaintiff filed the Complaint against Defendant and Does 1 through 10, alleging the following causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty; and (2) Fraudulent Inducement - Concealment.

On October 25, 2023, the Court (Hon. Melvin D. Sandvig) sustained Defendant's demurrer with motion to strike, granting Plaintiff 30 days leave to amend. No First Amended Complaint was filed within the 30-day time limit, and Defendant subsequently filed its Answer to the Complaint on March 14, 2024.

On September 5, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On March 20, 2026, Plaintiff filed the instant motion for attorney fees, costs, and expenses (the "Motion"). On August 18, 2026, Defendant filed an Opposition. On August 24, 2026, Plaintiff filed a Reply.

ANALYSIS

Attorney fees are allowed as costs

when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)¿ In a lemon law action, costs and expenses, including attorney fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)¿

Pursuant to the Song-Beverly Consumer Warranty Act, “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)¿

The attorney bears the burden of proof as to the “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “[T]he verified time statements of the attorneys ... are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of Cal. State University (2005) 132 Cal.App.4th 359, 396.) Even without detailed time records, the “[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees.” (Martino, at p. 559.)¿

“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Medical Management Systems, Inc. v. Cal. Insurance Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford, supra, 132 Cal.App.4th, at p. 395.)¿

In determining reasonable attorney fees, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30

Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)

A. Attorney Fees

(1) Prevailing Buyer

Plaintiff

contends that Plaintiff is a prevailing buyer entitled to attorney fees, costs, and expenses because the case resolved with Plaintiff recovering \$52,000, and the settlement agreement between the parties designates Plaintiff as the prevailing party entitled to attorney fees, costs, and expenses pursuant to the Song-Beverly Act. (Mot., at p. 3.) Defendant does not dispute that Plaintiff is the prevailing party. Instead, Defendant asserts that the claimed fees are unreasonable and excessive. The Court accordingly finds that Plaintiff is a prevailing buyer pursuant to Civil Code section 1794, subdivision (d).

(2) Reasonableness of Hourly Rates

The reasonable hourly rate is the “prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.) “The experienced trial judge is the best judge of the value of professional services rendered in [their] court.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1086.)

In determining the lodestar rate, “the court may rely on its own knowledge and familiarity with the legal market” in addition to evaluating the following factors: (1) the experience, skill, and reputation of the attorney requesting fees, (2) the difficulty or complexity of the litigation, and (3) affidavits from other attorneys regarding prevailing fees in the community. (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.) A court may also consider the efficiency with which counsel conducts the litigation. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 255-256 [affirming

reduction of rates where attorneys did not leverage experience to produce efficient litigation].)

Plaintiff seeks to recover attorney fees for work performed by seven timekeepers at rates Plaintiff contends are reasonable:

1.
associate attorney Elvira Kamosko at hourly rates of \$295.00-\$375.00;
2.
associate attorney Harita Nandivada ("Nandivada") at hourly rates of \$375.00-\$400.00;
3.
of counsel Kirk Donnelly at an hourly rate of \$500.00;
4.
outside counsel Mitchell Rosensweig at an hourly rate of \$375.00;
5.
partner Sundeep Samra at hourly rates of \$375.00-\$500.00;
6.
associate attorney Timothy Lupinek ("Lupinek") at hourly rates of \$415.00-\$450.00; and
7.
associate attorney Thach Tran at hourly rates of \$395.00-\$475.00.

(Kirnos Decl., ¶ 28, Exh. A.) In support of these rates, Knight Law Group's managing partner, Roger Kirnos ("Karnos"), attests to the education and general legal experience of the timekeeping attorneys. (Id., ¶ 28.) Karnos also lists Song-Beverly cases in which defense counsel has represented charging rates between \$410 and \$500 per hour and cases in which Knight Law Group's rates have been approved. (Id., ¶¶ 29-30.)

Defendant argues that the foregoing rates are excessive because lemon law cases are generally not complex and Plaintiff has not demonstrated that the rates align with the rates of private attorneys conducting straightforward lemon law matters on a non-contingency basis. (Opp'n, at p. 9.) Defendant requests that the Court set Plaintiff's counsels' rates at no more than \$350 per hour in line with authority affirming similar rate reductions. (See Mikhaeilpoor, *supra*, 48 Cal.App.5th, at p. 248 [finding no abuse of discretion in trial court finding that \$350 was a reasonable hourly rate for all attorneys billing in lemon law matter].)

Based on the Court's own knowledge of prevailing rates for Song-Beverly litigation in Los Angeles and the rates approved in similar cases, the Court finds the requested rates to be reasonable.

(3) Reasonableness of Hours Incurred

Plaintiff supports the requested lodestar figure with a billing summary reflecting 50.1 total hours of legal work performed over the course of two years of litigation. (Kirnos Decl., Exh. A.) The billing invoice itemizes tasks related to case preparation, discovery, motion practice, settlement, and preparation of the Motion. (Ibid.) Kirnos attests that the billing summary is a true and correct copy of the billing in this case and states that time is recorded on a weekly basis and has been reviewed to remove or reduce time deemed to be excessive, duplicative, or otherwise unreasonable. (Id. ¶¶ 2, 22.) This billing statement and the declaration of counsel are sufficient to establishment entitlement to the award. (Horsford, *supra*, 132 Cal.App.4th, at p. 396; Martino, *supra*, 182 Cal.App.3d, at p. 559.) The burden is thus on Defendant to challenge specific items with adequate authority and evidence.

(a)

Section 998 Offer

Defendant challenges all time billed between Plaintiff's rejection of Defendant's first offer of settlement and acceptance of the second offer, claiming that such time was unnecessarily incurred because Plaintiff failed to achieve a result more

favorable than the first offer. (Opp'n, at pp. 4-8.)

On August 28, 2023, Defendant offered alternatively to: (1) pay Plaintiff \$52,000 in return for Plaintiff surrendering the Subject Vehicle to Defendant, or (2) pay Plaintiff a total amount representing payments made for the Subject Vehicle, plus any incidental and consequential damages according to proof, and pay off the loan for the Subject Vehicle. (Reynolds Decl., Exh. B.) Plaintiff did not accept this offer. On June 2, 2025, Defendant made another offer to pay Plaintiff \$52,000 in exchange for Plaintiff's surrender of the Subject Vehicle, which Plaintiff accepted on July 14, 2025. (Kirnos Decl., ¶ 13, Exh. C.)

Pursuant to Code of Civil Procedure section 998, "[i]f an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer." (Code Civ. Proc., § 998, subd. (c)(1).) The Song-Beverly Act does not preclude application of section 998 to reduce the attorney fees, costs, and expenses recoverable by a lemon law plaintiff under appropriate circumstances. (Duale v. Mercedes-Benz USA, LLC (2007) 148 Cal.App.4th 718, 726.)

For section 998 to apply, the offer of settlement must be valid. An offer is valid only if it is made in good faith. (Licudine v. Cedars-Sinai Medical Center (2019) 30 Cal.App.5th 918, 924.) An offer is made in good faith if it has some reasonable prospect of being accepted. (Ibid.) Determination of whether an offer has a reasonable prospect of acceptance involves consideration of the "range of reasonably possible results' at trial" and whether the offeror knew that the offeree had sufficient information to assess the reasonableness of the offer. (Id., at pp. 924-925.) Both considerations are evaluated in light of the circumstances present at the time of the offer and not by virtue of hindsight. (Id., at p. 924.)

Plaintiff contends that the rejected offer was not valid because it was made at a time when Plaintiff lacked sufficient information to assess its reasonableness. (Reply, at p. 1.) Plaintiff also argues that the last offer rule operated to extinguish the 2023 offer such that it cannot be the basis for the disallowance of post-offer costs. (Id., at pp. 1-4.)

i.

Validity of the
August 28, 2023 Offer

First,

Plaintiff argues that the 2023 offer was not valid because Plaintiff lacked adequate information to evaluate the offer at the time. (Reply, at p. 1.) Plaintiff asserts that the offer was made only three months after the Complaint was filed and before any written discovery had been served or any depositions taken. (Ibid.)

Plaintiff's argument is well taken.

The record reflects that the Complaint was filed on May 22, 2023. Defendant was subsequently served on June 8, 2023, and filed its demurrer to the Complaint on July 5, 2023. The August 28, 2023 offer was thus made before the pleadings were settled, when Plaintiff still believed he had a viable fraud claim against Defendant. Additionally, Plaintiff's counsels' billing invoice confirms that between the filing of the Complaint and the initial offer, no discovery had been propounded by either party. (Kirnos Decl., Exh. A.) Plaintiff therefore lacked information with which he could evaluate his claims of willful conduct on the part of Defendant and could not meaningfully assess any entitlement to civil penalties. (See Compl., ¶¶ 108-109.)

The Court accordingly finds that the August 28, 2023 offer was not reasonably made and did not constitute a valid section 998 offer.

ii.

Operative Offer

Plaintiff also argues that the only offer that matters is the 2025 offer because it served to extinguish the first offer. (Reply, at pp. 1-4.) Plaintiff contends that the 2025 offer expired by operation of law because it was not accepted within 30 days (Id., at p. 2), suggesting that any cost-shifting or prohibition on recovery under section 998 must be based on the later offer pursuant to last-offer principles. Defendant contends that the last offer rule does not apply here because Defendant made successive offers for the same amount. (Opp'n, at p. 7.)

General contract principles apply to

statutory offers under section 998 so long as such principles do not conflict with the statute or defeat its purpose. (Martinez v. Brownco Construction Co. (2013) 56 Cal.4th 1014, 1022.) Under general contract principles, the last offer rule applies where multiple offers are made and operates to extinguish any prior offers. (Ibid.) For purposes of cost-shifting, however, the last offer rule is not always controlling. (Id., at p. 1026.) Where two section 998 offers to compromise are unrevoked and unaccepted, the second offer supersedes and extinguishes the first one where the offeree obtains a less favorable result than the first offer but a more favorable result than the later offer. (Ibid.) Where the offeree fails to obtain a more favorable result than either offer, however, the trial court has discretion to order the payment of fees incurred by the offering party from the date of the first offer. (Ibid.)

To serve as the operative offer for such cost-shifting to apply, however, the offer must have been reasonably made. (Ibid. [“[T]o be consistent with section 998’s financial incentives and disincentives, parties should not be penalized for making more than one reasonable settlement offer.”].)

Because the Court has found that the August 28, 2023 offer did not have a reasonable prospect of being accepted and was accordingly invalid for section 998 purposes, it does not serve to preclude Plaintiff from recovering his reasonable attorney fees and costs from the date of that offer. The Court thus agrees with Plaintiff that the 2025 offer was the only valid offer made in this action.

(b)

Reasonableness of Post-Offer Fees

Defendant argues that even if section 998 does not preclude recovery of all post-offer fees, the Court should consider whether those fees were reasonably incurred. (Opp’n, at p. 8.) Defendant contends that it was unreasonable to continue to litigate for a result Plaintiff could have achieved years earlier. (Ibid.)

Defendant does not identify specific items it contends are unreasonable, but points to the failed overall result, claiming that the litigation consisted of a failed opposition to Defendant’s demurrer, a failed attempt to revive the fraud cause of action Plaintiff left

unamended, and “scorched earth discovery.” (Opp’n, at p. 2.) Defendant does not provide any reasoned argument why any of the discovery sought by Plaintiff was unreasonable or unnecessary, and the Court does not find the time billed in connection with discovery to be unreasonable.

However, upon review of the record and procedural history in the matter, the Court does find that Plaintiff’s motion for relief to amend the Complaint was not reasonably made. The Court accordingly reduces the requested fees by \$2,227.50 (\$450 x 2.2 hours billed by Lupinek, plus \$375 x 3.3 hours billed by Nandivada). (See Kirnos Decl., Exh. A.)

Based on the foregoing, the Court determines the lodestar amount to be \$18,856.50.

(4) Lodestar Multiplier

Once the lodestar figure is determined, the Court may adjust the figure based on relevant factors. (Ketchum, supra, 24 Cal.4th, at p. 1132.) Factors that may be relevant include: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ibid.)

Plaintiff requests a lodestar multiplier of 1.5 based on the contingency risk undertaken and the length of the litigation. (Mot., at p. 12.) Defendant contends that the Court should reject application of any multiplier because the result obtained was not better than what Defendant initially offered. (Opp’n, at p. 2.)

While Plaintiff’s counsel took the case on a contingency basis, risking nonpayment or payment incommensurate with the time invested in the case, consideration of all relevant factors weighs against the application of a multiplier. The case did not present any novel questions and Plaintiff’s counsel did not achieve an extraordinary result.

The Court accordingly GRANTS the Motion for attorney fees in the reduced amount of \$18,856.50.

B. Reasonable Costs and Expenses

Under the

Song-Beverly Act, a prevailing buyer shall be allowed to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses. (See Civ. Code § 1794, subd. (d).) A properly verified memorandum of costs generally satisfies the prevailing party's initial burden of establishing that the claimed costs were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

Plaintiff

has filed a Memorandum of Costs concurrently with the Motion. The memorandum is verified by Plaintiff's counsel and itemizes costs for filing and motion fees, jury fees, deposition costs, service of process, and messenger fees, totaling \$3,026.61. (Memorandum of Costs, at p. 1.)

Defendant

contends that any costs incurred after the August 28, 2023 settlement offer were unnecessary. (Opp'n, at p. 7.) The Court has found that the August 2023 offer does not preclude recovery of reasonable fees, and Defendant does not dispute any particular fees as otherwise unreasonable or not actually incurred.

The Court

therefore GRANTS the Motion for costs in the amount of \$3,026.61.

CONCLUSION

Plaintiff's motion for attorney fees, costs, and expenses

is GRANTED IN PART. The Court awards Plaintiff \$18,856.50 in reasonable attorney fees and \$3,026.61 in costs.

Moving party to give notice.